

25STLC05908 25STLC05908

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-20

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Case Number: 25STLC05908 Hearing Date: August 20, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Joseph Eugene Scialfa's
Motion to Enforce Settlement Agreement
and for Entry of Judgment is denied.

Analysis:

On July 31,
2025, Plaintiff Joseph Eugene Scialfa ("Plaintiff") filed this action against
Defendant Roseark, Inc. ("Defendant"). Proof of Substitute Service of the
Summons and Complaint was filed on August 27, 2025. On October 1, 2025,
Plaintiff filed a Notice of Settlement of Entire Case. At the Order to Show
Cause Re: Dismissal (Settlement) on December 1, 2025, the Court dismissed the
action and retained jurisdiction pursuant to Code of Civil Procedure section
664.6. (Minute Order, 12/01/25.)

On February 2,
2026, Plaintiff filed the instant
Motion to Enforce Settlement Agreement and for Entry of Judgment. At the
initial hearing on July 14, 2026, the Court ruled that the Motion could not be
granted because it lacked proof of service showing that Plaintiff served
Defendant with notice of the Motion and the hearing date. (Minute Order,
07/14/26.) The Court also ruled that Defendant's first appearance fee must be
paid. (Ibid.) The Court ordered Plaintiff to file proof of service of
the Motion and of the new hearing date by August 6, 2026, and for Defendant's
first appearance fee to be paid by August 17, 2026. To date, however, neither
appears in the Court's records.

Therefore, Plaintiff Joseph Eugene Scialfa's Motion to Enforce Settlement Agreement and for Entry of Judgment is denied.

Judicial Assistant to give notice.